

SENATE No. 81

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to modernize cannabis retail operations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/29/2025</i>

SENATE No. 81

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 81) of Dylan A. Fernandes for legislation to modernize cannabis retail operations through advertising. Cannabis Policy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to modernize cannabis retail operations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4 of chapter 94G subsection (a1/2)(xxix), as so appearing, is
2 hereby amended by inserting in subsection (a1/2)(xxix)(6) after the word “marijuana” the
3 following words:-

4 provided that the commission shall not prohibit advertising, marketing and branding of
5 sales, discounts, and customer loyalty programs within a Marijuana Establishment, through a
6 delivery service, on an internet website maintained by a Marijuana Establishment, or through an
7 opt-in email marketing campaign;

8 SECTION 2. The commission shall promulgate or amend regulations as necessary to be
9 consistent with Section 1 not later than 365 days from the effective date of this act.